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File No: EXP202407562

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 21, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, A.A.A.), through the Agreement that is transcribed:

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File No: EXP202407562

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following,

FACTS

FIRST: On April 28, 2024, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, A.A.A.).

The facts brought to the attention of this authority are:

The complainant states that on June 12, 2023, from the law firm owned by A.A.A., an email was sent attaching a payment request and a warning of legal actions. The complainant refers that this email included as recipients a third person completely unrelated to the matter being addressed, considering that this manner of proceeding violated the current regulations on the protection of personal data.

To provide more detail on the facts, the complainant specifies that during the years 2022 and 2023 and due to his professional activity as a Notary in ***LOCALIDAD.1, he submitted various deeds for registration at the Property Registry of ***LOCALIDAD.2. This led to the issuance of invoices by the aforementioned Registry, in the name of the individuals in whose favor the registration was made. In June 2023, several invoices were pending payment, so on June 12, 2023, A.A.A., a lawyer contracted by the Property Registrar of ***LOCALIDAD.2, sent an email requesting payment for these, which included as recipients the email addresses of B.B.B. and C.C.C.

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The following is reproduced, for its interest, the aforementioned email dated 12/06/2023, provided by the complainant:

“Communication from D.D.D. to B.B.B.

A.A.A. ***EMAIL.1

Monday 12/06/2023 13:42

To: B.B.B. ***EMAIL.2; C.C.C. ***EMAIL.3

1 attachment (108 KB)

Good morning,

We are sending a communication to the attention of B.B.B. that has been sent by burofax on behalf of our client, D.D.D., Property Registrar of ***LOCALIDAD.2.

Sincerely,

A.A.A.

Lawyer”

In this case, the following data is expressly stated in the aforementioned email:

- As recipients (To): B.B.B. and C.C.C.

- Two email accounts: ***EMAIL.2 and ***EMAIL.3

The complainant expresses that, by sending that email and its attached file, a third person, who had nothing to do with the debt, was informed that the complainant was a joint debtor of invoices from the Property Registry of ***LOCALIDAD.2. At that moment, the complainant was carrying out his activity in ***LOCALIDAD.3, where that third person, also a Notary by profession, was assigned.

Along with the complaint, the following is provided:

- A copy of the email sent by A.A.A. to the complainant and to a third person, with the emails of both recipients: ***EMAIL.2 and ***EMAIL.3.
- Document requesting payment of several invoices, detailed with their amounts, to the client of A.A.A. (Property Registrar).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (in

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forward LOPDGDD), the aforementioned claim was forwarded to A.A.A. for analysis and to report back to this Agency within one month.

Thus, A.A.A. responded to the information request on 20/06/2024:

“(…), in order to represent my client's interests, (…) and given that Mr. (…) was not responding to communications, I took the measures I deemed appropriate to ensure that the recipient received said communication (…).

I decided to send the email to two addresses:

- (i) The corporate address of Mr. (...)
- (ii) The address of the Notary of ***LOCALIDAD.3 (...).

(...) I felt compelled to ensure that the communication reached the recipient, (...) this lawyer thought that perhaps Mr. (...) was not attending to the claims of the RP of ***LOCALIDAD.2 because they were being made at the Notary of ***LOCALIDAD.1; and that it would be correct to make them at the Notary of ***LOCALIDAD.3, given that it was known that the Notary had moved to that Notary.

For this reason, I took the trouble to research online what the email address of the Notary of ***LOCALIDAD.3 was (...)

(...) after consulting many other web pages (...) in all of them, the contact information for the Notary of ***LOCALIDAD.3 was referred to as the email address ***EMAIL.2 (...).

(...) The internet allowed me to verify that (...) was acting as Notary in ***LOCALIDAD.3, at the same Notary to which he had moved (...), (...) and the (...) acted as agreed Notaries, (...).

THIRD: Considering the arguments put forth by the respondent and in accordance with Article 65 of the LOPDGDD, the Director of the AEPD, on 12/07/2024, decided to dismiss the aforementioned claim.

FOURTH: On behalf of the claimant, on 17/08/2024, an optional appeal for reconsideration was filed against the aforementioned dismissal, mainly based on the following facts:

“What allows us to presume that A.A.A., by choosing email, was solely pursuing that C.C.C. was aware of the debt claimed from B.B.B., since if that email did not appear on the web pages, nor in the information from the Notarial College of (...), nor on the website of the General Council of Notaries, special efforts had to be made to obtain it.”

“The resolution of inadmissibility being appealed causes this party a clear defenselessness, since ... without allowing knowledge of the specific reason or reasons on which it is based: that is, whether it is dismissed because it is considered that the notification of the debt to a third party was properly made, or because the notification was made to the email of a collective office when it does not exist, ...”.

FIFTH: That on 18/11/2024, the Director of the AEPD upheld the appeal for reconsideration filed and proceeded to open sanctioning proceedings against A.A.A. on 27/12/2024.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this Organic Law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After that period, it will expire, and consequently, the file of actions will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Article 4.1) of the GDPR defines “personal data” as: “any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name,

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an identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.”

Article 4.2) of the GDPR defines “processing” as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure, or destruction.”

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since A.A.A. carries out, among other processing activities, the collection and storage of personal data of individuals, its clients, as well as those individuals against whom litigation is intended, such as name and surname, postal address, profession, telephone number, and email address, in addition to all data necessary for the litigation.

Article 4.7) of the GDPR defines the “data controller” or “controller” as: “the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States.” Furthermore, Article 4.8) of the GDPR defines the “processor” or “processor” as the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.

A.A.A. carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Unfulfilled obligation. Integrity and confidentiality

Letter f) of Article 5.1 of the GDPR states:

“1. Personal data shall be:

(...)

f) processed in such a way as to ensure an appropriate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures (‘integrity and confidentiality’).”

The fact is that in the email sent by A.A.A., there are two recipients with their names and surnames, as well as two easily identifiable email addresses.

Regarding the email account of the third party in question, ***EMAIL.3., it could not be considered a corporate generic email since it is easily noted that it is composed of the initial of the name and the surname, as the complainant alleges:

“If the name of the email ***EMAIL.2 is broken down, it is observed without forcing its content that it is composed (...). With that data, the email ***EMAIL.3 is formed. And it has no reference to being the email of the Notary of ***LOCALIDAD.3, nor does it allow deducing that there are several people to whom it refers.”

This email account belongs to a person who does not correspond with the current complainant, neither by name nor by surname, nor by sex, but does belong to a third party whose profession is the same as that of the complainant, Notary, as it includes the domain notariado.org. That is to say, it was known that it was being sent to another Notary.

Furthermore, the document attached to the email detailing 6 invoices with their number, entry, protocol, date, invoice reference, and amount is indeed addressed exclusively to the complainant, and it informs them that “as the authorizing and presenting Notary of the referenced documents, they are jointly liable for the Outstanding Debt.”

Well, Article 1144 of the Civil Code, regarding “joint and several obligations,” states:

“The creditor may direct their claim against any of the joint debtors or against all of them simultaneously. Claims made against one shall not prevent those subsequently directed against the others, as long as the debt is not fully collected.”

There is no evidence that the third party in question is a joint debtor of these invoices and therefore should not be aware of their existence, much less the details of them.

In the attached document, it is also referenced:

“As you are perfectly aware, since both D.D.D. and the staff of your Registry have communicated this to you on too many occasions through all possible means, as of the date, there are pending payments of...€ (the ‘Outstanding Debt’)...”

That is to say, A.A.A. should have known the contact details of the complainant that their client would have provided, such as the postal address, telephone number, and email address, as it states that it has been communicated to them on too many occasions through all possible means. This means that their client, the Property Registrar, when hiring their services, would have given them the contact details of the complainant that they had.

Therefore, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to A.A.A., for violation of the previously transcribed article.

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V

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following

article, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In the present case, considering the severity of the possible infringement, particularly in light of the consequences that its commission causes to the affected party, the imposition of a fine, in addition to the adoption of measures, would be appropriate if warranted.

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The fine imposed must be, in each individual case, effective, proportionate, and deterrent, in accordance with the provisions of Article 83.1 of the GDPR.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, with respect to the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for an initial administrative fine of €1,000.00 (ONE THOUSAND EUROS).

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”

Thus, the controller may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, the resolution adopted may require A.A.A. to adopt the following measures within a period of 1 month from the date of effectiveness of the resolution concluding this procedure:

- Demonstrate the adoption of the necessary measures to ensure compliance with the provisions of Article 5.1.f) of the GDPR.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may motivate such conduct to initiate a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts from the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to demonstrate compliance with this obligation before this AEPD.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A., with NIF ***NIF.1, for the alleged

infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorato for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of €1,000.00 (ONE THOUSAND EUROS), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for them to submit allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €800.00 (EIGHT HUNDRED EUROS), concluding the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €800.00, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative to the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution.

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In this case, if both reductions were to be applied, the amount of the fine would be set at €600.00 (SIX HUNDRED EUROS).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or appeal in the administrative route against the fine. For these purposes, in the event of opting for one of them, you must send to the General Subdirectorato of Data Inspection an express communication of the withdrawal or renunciation of any action or appeal in the administrative route against the fine, indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (€800.00 or €600.00), you must make the payment by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorato of Inspection along with the express communication of the withdrawal or renunciation of any action or appeal in the administrative route against the fine to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Unique Enabled Electronic

Address (dehu.redsara.es) and the Electronic Headquarters (sedeagpd.gob.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

1479-111224

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency.

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SECOND: On March 10, 2025, A.A.A. proceeded to pay the fine in the amount of €600.00 making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement and its legal qualification.

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THIRD: In the previously transcribed Initiation Agreement, it was indicated that if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having received a written communication from A.A.A. informing that they have adopted the necessary measures to prevent the reoccurrence of the facts determining the committed infringement, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on the regularity or legality of the measures adopted.

It is warned about the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it." This principle refers to the obligation that falls on the data controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations but also to remain actively vigilant throughout the entire lifecycle of the processing to ensure that compliance is correct, being additionally capable of demonstrating it.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

III

Voluntary Payment and Acknowledgment of Responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making the voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 600.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, A.A.A. has proceeded to acknowledge responsibility and make the voluntary payment of the sanction, availing themselves of the two reductions provided for. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution. The sum of the aforementioned amounts results in a total of 1,000.00 euros.

After A.A.A. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the total mentioned is applied, pursuant to Article 85 of the LPACAP, which results

in a final amount of 600.00 euros.

The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway.

SECOND: TO DECLARE the termination of the procedure EXP202407562, in accordance with the provisions established in Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to A.A.A.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment upon the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution shall be final in the administrative pathway and fully executable from the moment of its notification.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sede.aepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

1219-240325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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